

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 24-12

20240930-DK-BUTTERFLY-1, INC., F/K/A BED BATH & BEYOND, INC.

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., AND
EVERGREEN MARINE (SINGAPORE) PTE. LTD..

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant 20240930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc.¹. (“BBBY”) and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”) (BBBY, collectively with Evergreen, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule:

The Parties have already exchanged the initial disclosures required by 46 C.F.R. § 502.141(b). The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions per party) and 502.145 (i.e., no more than 50 written interrogatories), respectively.

¹ BBBY filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023 by and through which Bed Bath & Beyond Inc. changed its corporate name to 20240930-DK-Butterfly-1, Inc.

Consistent with Paragraph 20 of the Presiding Officer's February 28, 2024 Initial Order in this case, the Parties intend to meet and confer (and have already exchanged a draft protocol) concerning a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case.

Pursuant to 46 C.F.R. § 502.64(a), the Parties also held a preliminary conference with the Commission's Office of Consumer Affairs and Dispute Resolution Services ("CADRS") via a videoconference on July 18, 2024.

The Parties propose the below schedule, which provides for a discovery schedule in excess of 150 days. The parties are mindful of the 150-day time period set by 46 C.F.R. § 502.141(g); however, the parties anticipate that documentary discovery will be extensive.

The Parties propose this schedule having already had extensive discussions, dating back to April 2024, regarding the collection of electronically stored information from likely relevant custodians and the proposal of possible search terms to identify potentially relevant documents.

Complainant's database of potentially responsive documents contains approximately 8.35 terabytes of data. It is Complainant's experience that much of this data also exists as compressed electronic files which, once opened and expanded, yield a significantly higher data volume. This volume consists of approximately 6.2 million documents exclusively as it relates to emails and electronic files collected from specific custodians, with significant additional documents and data collected from Complainant's shared document files and other sources. After this initial data base has been electronically searched and narrowed, potentially responsive documents based on the Parties' written discovery requests must be manually reviewed for responsiveness, confidentiality, and privilege before they are prepared for production, a task which will take a significant amount of time. The volume of data which must be searched could grow, depending on the list of custodians agreed upon by the parties.

As to Evergreen, based upon initial searches for potentially responsive data from likely custodians it anticipates a return of approximately 2 terabytes of data, which must be electronically searched for responsive documents. Like Complainant's data, the same required processes described above of searching and conducting manual review must take place.

The Commission's regulations requiring that discovery be completed within 150 days of the service of a respondent's answer may be a reasonable time in a relatively straightforward case; however, it is not realistic for a case of this magnitude in which documentary discovery involves tens of millions of documents, depositions of as many as twenty witnesses per party and damages alleged in excess of \$85,000,000.

The parties acknowledge that prompt resolution of claims and disputes arising under the statutes administered by the Commission is a laudable goal, one which the deadlines for issuance of initial and final decisions are intended to achieve, and that scheduling orders are an important part of this process. However, the parties wish to emphasize that it is not unusual for the deadlines for completion of discovery and/or for the issuance of initial and final decisions to be extended by administrative law judges and the Commission. The same rationale should apply at this initial stage, when a discovery schedule is being established.

There are also policy considerations which favor allowing sufficient time for a full development of the evidentiary record before an agency. *Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002)(policy and responsibility of Commission and, by delegation of authority, presiding judge, to inquire into and consider all relevant facts; of even greater importance than the concept of fairness between the parties, as they maneuver to develop a record which fits their positions, is the need to ensure that justice is served and all relevant facts are considered by the Commission).

The parties believe that good cause has been demonstrated to modify the 150-day deadline provided for under 46 C.F.R. §502.141(g) and accordingly propose the following schedule:

EVENT	PROPOSED DEADLINE
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	August 16, 2024
Parties to serve objections and initial responses to initial RFPs	September 20, 2024
Parties to serve objections and initial responses to initial interrogatories	September 20, 2024
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	October 25, 2024
Substantial completion of productions of documents and ESI in response to initial RFPs	December 13, 2024
Parties to File Joint Status Report	January 10, 2025
Complete depositions of fact witnesses	February 28, 2025
Last day to serve interrogatories, requests for admission, and RFPs	February 28, 2025
Disclosure of initial expert reports, if any	April 4, 2025
Disclosure of rebuttal expert reports, if any	May 9, 2025
Complete expert depositions	June 6, 2025
Close of discovery	June 6, 2025
Complainant’s initial brief, proposed findings of fact, and appendix	July 18, 2025
Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	August 29, 2025
Complainant’s reply and responses to proposed findings of fact	September 19, 2025

Given the considerable amount of work that is required in this case, the parties propose to file a status report with the Presiding Officer on January 10, 2025 to report on the status of discovery.

Dated: July 19, 2024

Respectfully submitted,

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